



SPONSOR: Rep. Bush & Rep. Morrison & Sen. Hoffner
Reps. Osienski, Romer, Wilson-Anton, Snyder-Hall,
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HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 88

AN ACT PROPOSING AN AMENDMENT TO ARTICLE V OF THE DELAWARE CONSTITUTION RELATING TO VOTING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

1 Section 1. Amend § 4 of Article V of the Delaware Constitution by making deletions as shown by strike through
2 and insertions as shown by underline as follows:

3 § 4. Registration of voters; ~~days for registration; application to strike name from list; appeals; registration as~~
4 ~~prerequisite for voting.~~ voters.

5 Section 4. The General Assembly shall enact ~~uniform~~ laws for the registration of voters in this State entitled to
6 vote under this Article, ~~which registration shall be conclusive evidence to the election officers of the right of every person~~
7 ~~so registered to vote at any General Election while his or her name shall remain on the list of registered voters, and who is~~
8 ~~not at the time disqualified under the provisions of Section 3 of this Article; and no person shall vote at such General~~
9 ~~Election whose name does not at that time appear in said list of registered voters.~~ Article. The General Assembly shall
10 provide by law means to ensure the integrity and accuracy of voter registration.

11 ~~There shall be at least two registration days in a period commencing not more than one hundred and twenty days,~~
12 ~~nor less than sixty days before, and ending not more than twenty days, nor less than ten days before, each General Election,~~
13 ~~on which registration days persons whose names are not on the list of registered voters established by law for such election,~~
14 ~~may apply for registration, and on which registration days applications may be made to strike from the said registration list~~
15 ~~names of persons on said list who are not eligible to vote at such election; provided, however, that such registration may be~~
16 ~~corrected as hereinafter provided at any time prior to the day of holding the election.~~

17 ~~From the decision of the registration officers granting or refusing registration, or striking or refusing to strike a~~
18 ~~name or names from the registration list, any person interested, or any registration officer, may appeal to the resident~~
19 ~~Associate Judge of the County, or in case of his or her disability or absence from the County, to any Judge entitled to sit in~~
20 ~~the Supreme Court, whose determination shall be final; and he or she shall have power to order any name improperly~~
21 ~~omitted from the said registry to be placed thereon, and any name improperly appearing on the said registry to be stricken~~
22 ~~therefrom, and any name appearing on the said registry, in any manner incorrect, to be corrected, and to make and enforce~~

23 ~~all necessary orders in the premises for the correction of the said registry. Registration shall be a prerequisite for voting~~
24 ~~only at general elections, at which Representatives to the General Assembly shall be chosen, unless the General Assembly~~
25 ~~shall otherwise provide by law.~~

26 The existing laws in reference to the registration of voters, so far as consistent with the provisions of this Article,
27 shall continue in force until the General Assembly shall otherwise provide.

SYNOPSIS

This Act is the first leg of a constitutional amendment to allow the General Assembly to enact laws for the registration of voters without restrictions on the time period in which registration must be closed prior to an election. It also requires the General Assembly to provide by law for means to ensure the accuracy and integrity of voter registration.

This Act is in response to the Supreme Court's decision in *Albence v. Higgin*, 2022 Del. LEXIS 377 (Del. 2022) which found a same-day registration statute to be "incompatible with Section 4 [of Article V of the Constitution]'s registration deadline and its relationship to the appeal and correction process."

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly. This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.